

Writ Petition No: 11126 of 2014

Muhammad Afzal Riaz

Special Judge-ACE etc.

17.02.2015

Mr. Zia Ibrahim Bhinder, Advocate for the petitioner.
Mr. Muhammad Nasir Chohan, AAG.
Mr. Muhammad Zubair Khalid Chaudhary, Advocate for respondents No.2,3 and 4.

Through this constitutional petition, the petitioner has called in question the order dated 31.03.2014 through which the applications filed by Shahbat Latif-accused (respondent No.4) and Lal Hussain-accused (respondent No.5) for staying the proceedings of trial in case FIR No.250 registered at P.S Kahna, Lahore on 16.02.2013 in respect of the offences under sections 420/468/471/409 PPC read with section 5(2) of Prevention of Corruption Act, 1947 was accepted by the learned trial Judge, Anti Corruption, Lahore and proceedings in the trial were stayed till the final decision of the civil suit.

2. The learned counsel for the petitioner contends that the learned trial court unlawfully accepted both the applications filed by respondents No.4 and 5. The learned counsel further contended that the signatures of the petitioner were found forged on Rapt Nos.548 and 549 and that criminal and civil proceedings can run simultaneously. Lastly, it was argued that there was a prima facie case against the respondents No.2 to 4 and

prayed that the impugned order dated 31.03.2014 deserved to quash. Learned counsel for the petitioner has relied upon (2008 SCRM 839) “**Seema Fareed and others v. The State and another**”.

3. On the other hand, learned counsel for respondents No.2 to 4 has submitted that against the same dispute, the petitioner/complainant filed civil suit, which is pending adjudication before civil court at Lahore; that the criminal proceedings against the respondents No.2 to 4 were an abuse of process of law and learned trial Judge rightly stayed the proceedings pending before him. Lastly, it was urged by the learned counsel for respondents No.2 to 4 that learned trial court has rightly stayed the criminal proceedings and interference by this court was not called for. The learned counsel for respondents No.2 to 4 has relied upon (2014 SCMR 1741) “**Sajjad Hussain Mukhi v. The State and others**”.

4. I have given careful considerations to the arguments of the learned counsel for the parties. In order to determine the controversy, it is necessary to determine whether in fact the accusation leveled in the criminal proceedings as well as claim or prayer in the civil suit are the same. The risk of conflicting decisions is only dependent upon the determination of the above facts. In this view of the matter, record of civil suit and criminal case has been examined. In the civil suit No.31176-C/31.10.11, filed by the

petitioner/complainant on 31.10.2011, wherein following prayer was made.

“Under the circumstances, it is therefore most respectfully prayed that the suit may kindly be decreed in favour of the plaintiff and against the defendants. Tabadla Nama regarding land measuring 2-K 10-M from the suit property in favour of defendants No.2 to 5 bearing mutation No.260 dated 20.09.1996 may very kindly be declared void ab-initio, illegal, ineffective and be cancelled.

It is also prayed that the defendants may very kindly be directed or some officials of this Honourable Court be appointed to get the sale deed of suit property mentioned in Para No.2 above registered in favour of the plaintiff with possession.

It is further prayed that the defendants may very kindly be restrained permanently from alienating the property to any other person in any manner whatsoever”

5. The allegation contained in the criminal proceedings are that the maternal aunt of the complainant (the petitioner) namely Saira Bibi, who had died issueless and she had sold her inherited property to him (the petitioner) through sale deed No.3467 dated 27.6.12993 and she also executed general attorney on 20.7.1993 in favour of the complainant (the petitioner). Thereafter, after death of Saira Bibi, the legal heirs

namely Khalil Ahmad, Muhammad Latif (father of respondents No.2 to 5) and Kalsoom Bibi have been died. After death of above said legal heirs of Saira Bibi one month before (from the date of registration of the FIR), he (the complainant) came to know that respondents No.2 to 5 got transferred the land measuring 2-K-10-M by way of fraud and forged signatures of the complainant through “Tabadla Nama” in connivance with the Halqa Patwari. The petitioner had raised same plea in the civil suit titled “***Muhammad Afzal Khan v. Muhammad Akram etc***” for declaration, specific performance of contract, cancellation of document and permanent injunction along with consequential relief, filed 3 ½ months earlier. It is abundantly clear that the parties in the criminal and civil proceedings are the same and the points at issues therein are also identical and conflicting judgment in the circumstances cannot be ruled out. The Hon’ble Supreme Court of the Pakistan in the case reported as (2014 SCMR 1741) “***Sajjad Hussain Mukhi v. The State and others***” held that:-

“Where the suits are pending between the parties on the subject, criminal court will obviously stay its hands in entering upon the dispute as deciding the dispute with regard to properties squarely falls within the domain of Civil Court in respect of which parties have already initiated proceedings”

The scope and ambit of the issues are the same and the relief prayed for in the civil suit and criminal

proceedings are same. The question of title to the disputed land is a matter in dispute between the parties and since common question arises in both the suit and criminal proceedings, it was necessary in the interest of justice that the criminal proceedings be stayed till the civil suit is decided. The case law cited at the bar by the learned counsel for the petitioner is not applicable on the facts and circumstances of the instant petition. The learned counsel for the petitioner has not been able to point out any irregularity or illegality in the impugned order passed by the learned Trial Judge warranting interference by this Court in its constitutional jurisdiction, which is dismissed.

(Aalia Neelum)
Judge

Approved for reporting.

Judge

Tariq*